

PRIVACY PRACTICES NOTICE

Protected Health Information (PHI)

Protected Health Information (PHI) refers to any individually identifiable health information collected, created, or maintained by Evolve Psychiatry in the course of providing care. PHI includes information that relates to your past, present, or future physical or mental health condition, the provision of health care to you, or the payment for such care, and that can be used to identify you.

Examples of PHI include, but are not limited to: your name, address, date of birth, telephone number, medical history, diagnosis, treatment records, billing information, and genetic data.

Medical Records

Your medical records are maintained to support the provision of health care services, conduct routine health care operations, process billing and payments, and ensure the quality and continuity of care. Common uses of your medical records include:

- Reviewing clinical documentation to ensure appropriate treatment;
- Sending billing information to you, your insurance company, or other authorized payers;
- Providing appointment reminders via phone, secure email, or text message, consistent with your communication preferences;
- Conducting internal reviews to ensure completeness, compliance, and quality of care.

Medical records may be made available upon written request; however, a standard processing period of up to seven (7) business days may apply to allow for appropriate clinical and administrative review prior to release.

All such uses and disclosures are conducted in accordance with applicable privacy laws and the terms of this Notice.

Federal And State Requirements

Evolve Psychiatry is required by federal and applicable state law to maintain the privacy and security of your Protected Health Information (PHI). We are also required to comply with the terms outlined in this Notice of Privacy Practices for as long as it remains in effect.

Evolve Psychiatry reserves the right to revise this Notice at any time and to apply those changes to all PHI maintained by the practice, including information previously created or received. If changes are made, we will post the updated Notice in our office and on our website, and provide you with a copy upon request.

We are also required to:

- Notify you in the event of a breach involving the unauthorized access, use, or disclosure of your unsecured PHI;
- Inform you if any state privacy law imposes additional or more stringent requirements than those outlined by the federal Health Insurance Portability and Accountability Act (HIPAA), and ensure compliance with those provisions.

Uses And Disclosures Of Protected Health Information

Authorization and Consent for Other Uses: Except as otherwise permitted or required by law, Evolve Psychiatry will not use or disclose your Protected Health Information (PHI) for any purpose outside of treatment, payment, or healthcare operations without your written authorization. You have the right to revoke your authorization at any time by submitting a written request to our office. Such revocation will become effective upon receipt, except to the extent that:

- Evolve Psychiatry has already acted in reliance on the prior authorization; or
- The authorization was obtained as a condition of insurance coverage and applicable law permits the insurer to contest a claim under the policy or the policy itself.

Uses and Disclosures for Treatment: Evolve Psychiatry may use and disclose your PHI as necessary to provide, coordinate, or manage your care. This includes the sharing of information among doctors, nurses, therapists, and other healthcare professionals involved in your treatment. Information from your medical records, including your symptoms, diagnoses, treatment plans, test results, and medication history, may be used to support ongoing or coordinated care efforts.

Uses and Disclosures for Payment: Evolve Psychiatry may use and disclose your PHI for billing and payment-related purposes. This includes submitting claims to your health insurance provider, verifying coverage or benefits, coordinating payment with other insurers, and billing you or another responsible party for services rendered. We may disclose information regarding your diagnosis, procedures, and treatment plans to obtain payment or reimbursement for the services provided.

Health Care Operations: We may use and disclose your PHI for administrative, quality assurance, and operational purposes. These may include peer review, accreditation, legal audits, clinical improvement initiatives, training, and business management activities. For example, we may use PHI to evaluate clinician performance or analyze treatment outcomes.

Individuals Involved in Your Care or Payment: If you are incapacitated, unavailable, or facing an emergency, Evolve Psychiatry may use its professional judgment to disclose limited PHI to a family member, legal guardian, or other individual involved in your care or payment. Disclosures will be limited to what is necessary. We may also disclose limited PHI to authorized agencies involved in disaster response efforts for

the purpose of locating family members or caregivers.

Business Associates: We may share your PHI with third-party service providers (“Business Associates”) who assist us with healthcare operations, such as billing, data analysis, legal services, or accreditation. These entities are contractually required to protect the privacy and security of your PHI in accordance with HIPAA.

Appointment Reminders and Communications: Evolve Psychiatry may contact you to provide appointment reminders or information about treatment alternatives, benefits, or health-related services that may be of interest to you. You have the right to request that communications be sent to a specific address, phone number, or by alternative means. We will accommodate reasonable requests when properly submitted in writing.

Other Uses and Disclosures Permitted or Required by Law: In certain circumstances, Evolve Psychiatry may use or disclose your PHI without your authorization when permitted or required by law, including:

- To comply with legal mandates or court orders;
- For public health reporting (e.g., communicable diseases, birth/death records, adverse drug events);
- To report suspected child or elder abuse, neglect, or domestic violence;
- To the Food and Drug Administration (FDA) for product oversight and recall;
- To a government agency conducting audits, licensure, or investigations;
- To law enforcement as required for legal proceedings or authorized requests;
- To coroners, medical examiners, or funeral directors as needed;
- For organ or tissue donation and transplantation coordination;
- If required by military command authorities or national security agencies;
- To workers’ compensation programs for the processing of claims;
- To your employer, but only when health care services were requested by your employer and consistent with applicable laws.

Disclosures Requiring Authorization

Psychotherapy Notes: Under federal privacy laws, Evolve Psychiatry is required to obtain your specific written authorization before using or disclosing psychotherapy notes—defined as notes recorded by a mental health professional during a counseling session, kept separate from the rest of your medical record—except in the limited circumstances described below.

Without your written authorization, Evolve Psychiatry may use or disclose psychotherapy notes only:

- For treatment purposes carried out by the originator of the notes;
- For our own training programs involving mental health professionals;
- To defend ourselves in a legal action or other proceeding brought by you;
- To the Secretary of the U.S. Department of Health and Human Services as part of a HIPAA compliance investigation;
- As permitted by law to medical examiners or coroners;
- When necessary to prevent or lessen a serious and imminent threat to the health or safety of a person or the public.

Your Rights Regarding Protected Health Information

As a patient of Evolve Psychiatry, you have the following rights under the Health Insurance Portability and Accountability Act (HIPAA):

Right to Access PHI: You have the right to inspect and obtain a copy of your PHI maintained by Evolve Psychiatry. This includes medical records, billing information, and other data in designated record sets. If your records are maintained electronically, you may request them in a reasonable electronic format, if readily producible. Requests for access must be submitted via the Release of Health Information Form available through the Evolve Psychiatry patient portal. You may be charged a reasonable fee for copies, postage, and supplies. Additional fees may apply for repeated or additional requests.

Right to Request Amendments: You have the right to request that your PHI be amended or corrected if you believe it is inaccurate or incomplete. All amendment requests must:

- Be submitted in writing and signed by you or your legal representative;
- Include a reason supporting the requested change.

While Evolve Psychiatry is not required to grant every request, each will be reviewed in good faith. If an amendment is accepted, we may notify relevant third parties. Forms are available from the designated medical records coordinator.

Right to an Accounting of Disclosures: You may request a record of certain disclosures of your PHI made by Evolve Psychiatry after April 14, 2003. The first request in any 12-month period is free. Additional requests within the same period may incur a fee, which will be disclosed to you in advance. Requests must be made in writing and signed. Accounting Request Forms can be obtained from the individual responsible for medical records.

Right to Request Restrictions: You may request restrictions on the use or disclosure of your PHI for treatment, payment, or healthcare operations. Evolve Psychiatry is not required to agree to most restrictions, but will consider reasonable requests. You do have the right to restrict disclosures to your health plan if:

- The disclosure is for payment or operations (not treatment); and
- The related services have been paid for in full out-of-pocket by you or someone on your behalf.

If Evolve Psychiatry agrees to a restriction, we reserve the right to remove it if necessary, and will notify you accordingly. You may withdraw any restriction at any time by notifying our medical records team in writing or verbally.

Right to Notice of Breach: Evolve Psychiatry is legally required to maintain appropriate administrative, technical, and physical safeguards to protect your PHI. If a breach occurs involving your unsecured PHI, we will notify you without unreasonable delay and provide information on any steps you may need to take to protect yourself.